

24TRCV04373 24TRCV04373

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Case Number: 24TRCV04373 Hearing Date: July 30, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SHELIA JONES

;

Plaintiff,

vs.

WESTERN DENTAL

, et al.;

Defendants.

Case

No.:

24TRCV04373

Hearing

Date:

July
30, 2026

Time:

1:30 p.m.

[tentative]

Order RE:

(1)

DEFENDANTS WESTERN DENTAL SERVICES, INC.,
PREMIER DENTAL HOLDINGS, INC. DBA SONRAVA HEALTH, AND MELATH KHALID
AL-HASSAN, D.D.S.' DEMURRER TO PLAINTIFF SHELIA JONES' THIRD AMENDED
COMPLAINT

(2)

DEFENDANTS WESTERN DENTAL SERVICES, INC.,
PREMIER DENTAL HOLDINGS, INC. DBA SONRAVA HEALTH, AND MELATH KHALID
AL-HASSAN, D.D.S.' MOTION TO STRIKE PORTIONS OF PLAINTIFF SHELIA JONES' THIRD
AMENDED COMPLAINT

(3)

PLAINTIFF SHELIA JONES' REQUEST FOR LEAVE TO
AMEND

MOVING PARTY: Defendants, Western Dental
Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava Health, and Melath
Khalis Al-Hassan

RESPONDING

PARTY: Plaintiff, Shelia Jones

(1)

Defendants

Western Dental Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava
Health, and Melath Khalid Al-Hassan, D.D.S.' Demurrer to Plaintiff Shelia
Jones' Third Amended Complaint is SUSTAINED with respect to the first, second,
and third causes of action and OVERRULED with respect to the fourth cause of

action pursuant to Code of Civil Procedure section 430.10.

(2)

Defendants

Western Dental Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava Health, and Melath Khalid Al-Hassan, D.D.S.' Motion to Strike Portions of Plaintiff Shelia Jones' Third Amended Complaint is GRANTED IN PART as to paragraph 95 pursuant to Code of Civil Procedure section 435.

(3)

Plaintiff

Shelia Jones is GRANTED twenty (20) days Leave to Amend.

The Court considers the moving papers filed on June 6, 2026, the opposition briefs filed on July 16, 2026, and the reply briefs filed on July 23, 2026.

BACKGROUND

Factual Background

On December 19, 2024, plaintiff Shelia Jones ("Plaintiff") filed a Complaint against defendant Western Dental. On December 26, 2024, Plaintiff filed her First Amended Complaint ("FAC") against Western Dental.

On February 3, 2026, Plaintiff filed a Substitution of Attorney – Civil, informing the Court that she is now represented by an attorney.

On February 6, 2026, Plaintiff filed her Second Amended Complaint ("SAC") against defendants Western Dental Services, Inc., Sonrava Health, Inc., Melath Khalid Al Hasan, D.D.S., and DOES 1 through 20.

On May 4, 2026, Plaintiff filed her Third Amended Complaint ("TAC") against defendants Western Dental Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava Health Inc., Melath Khalid Al Hasan, D.D.S., and DOES 1 through 50.

The TAC includes the following causes of action: (1) Wrongful Death – Professional Negligence (Code Civ. Proc. § 377.60); (2) Survival Action –

Professional Negligence (Code Civ. Proc. §§ 377.30, 377.34); (3) Fraudulent Concealment; and (4) Battery – Lack of Consent.

On May 4, 2026, Plaintiff filed a declaration of successor in interest pursuant to Code of Civil Procedure section 377.32.

On June 3, 2026, the parties' counsels held a telephone conference to discuss the anticipated demurrer and motion to strike. (Declaration of Victor G. Avila re: Demurrer ("Dem. Avila Decl."), ¶ 6; Declaration of Victor G. Avila re: Motion to Strike ("MTS Avila Decl."), ¶ 6.) During this call, the counsel for Western Dental Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava Health Inc., and Melath Khalid Al Hasan, D.D.S. (collectively, "Defendants") outlined the alleged deficiencies contained in the TAC. (Dem. Avila Decl., ¶¶ 7-8; MTS Avila Decl., ¶¶ 7-8.) Plaintiff's counsel disagreed with these points, which necessitated the filing of the demurrer and motion to strike. (Dem. Avila Decl., ¶ 9; MTS Avila Decl., ¶ 9.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On June 3, 2026, the parties' counsels held a telephone conference to discuss the anticipated demurrer and motion to strike. (Dem. Avila Decl., ¶ 6; MTS Avila Decl., ¶ 6.) During this call, counsel for Defendants outlined the alleged deficiencies contained in the TAC. (Dem. Avila Decl., ¶¶ 7-8; MTS Avila Decl., ¶¶ 7-8.) Plaintiff's counsel disagreed with these points, which necessitated the filing of the demurrer and motion to strike. (Dem. Avila Decl., ¶ 9; MTS Avila Decl., ¶ 9.)

Accordingly, the Court finds that the parties sufficiently met and conferred.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain,

because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Discussion

First and Second Causes of Action –

Wrongful Death – Professional Negligence (Code Civ. Proc. § 377.60) and

Survival Action – Professional Negligence (Code Civ. Proc. §§ 377.30, 377.34)

Defendants demur to Plaintiff’s first and second causes of action for wrongful death – professional negligence (Code Civ. Proc. § 377.60) and survival action – professional negligence (Code Civ. Proc. §§ 377.30, 377.34), respectively, on the grounds that these claims are time-barred by Code of Civil Procedure section 340.5. (Dem., pp. 5:25-7:6.) The Court agrees.

Pursuant to Code of Civil Procedure section 340.5, “In an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person.” (Code Civ. Proc., § 340.5.)

California courts have held that “the word ‘injury’ in section 340.5, as that statute applies to wrongful death actions, must be read to refer to the wrongfully caused death of the plaintiff’s decedent.” (Larcher v. Wanless (1976) 18 Cal.3d 646, 659.) “In view of this interpretation, it appears that plaintiffs’ suit, filed within three months of the death of their decedent Virginia Larcher, was properly brought within the one-year period of limitation of section 340.5.” (Ibid.)

Plaintiff presents the following allegations: On December 29, 2022, Ronnesha Shalann Pennywell (“Decedent”) presented to Western Dental’s clinic at 3561 W. Century Blvd., Inglewood, CA 90303 with complaints of mouth pain, jaw swelling, an active oral infection, and severe pain. (TAC, ¶¶ 1-2, 25.) On the same date, Dr. Al-Hassan, with the assistance of dental assistant Cynthia A. Shepherd, executed two periodontal

medicament carrier procedures with a peripheral seal and performed periodontal scaling and root planing on four or more teeth within each quadrant of Decedent's mouth. (TAC, ¶ 28.) Furthermore, Plaintiff asserts that "[o]n information and belief, during or as part of the procedure on December 29, 2022, [D]efendants performed an undocumented procedure that resulted in continuous post-procedural bleeding from [D]ecedent's mouth." (TAC, ¶ 32.)

Plaintiff further alleges: On January 3, 2023, Decedent suffered an acute deterioration at home and was transported by emergency medical services to a hospital. (TAC, ¶ 38.) Decedent presented with altered levels of consciousness and vomiting. (TAC, ¶ 38.)

Medical professionals diagnosed her with acute encephalopathy, sepsis, a possible urinary tract infection, and anemia, and they administered intravenous fluids, antibiotics, and blood transfusions during resuscitative efforts. (TAC, ¶ 38.) During a CT scan, Decedent went into cardiac arrest and was pronounced deceased on the same day. (TAC, ¶ 39.) An autopsy, conducted by the San Bernardino County Sheriff's Coroner Division, concluded that the cause of death was "sequelae of sepsis of unknown etiology," with the manner of death classified as "Natural." (TAC, ¶¶ 40, 44.)

Under Code of Civil Procedure Section 340.5, the "injury" in this action occurred on January 3, 2023. As such, Plaintiff had until January 3, 2024 to file claims for wrongful death and survival based on allegations of professional negligence. However, the initial Complaint was not filed until December 19, 2024, which was nearly one year and eleven months following Decedent's death. Thus, these claims are time-barred unless Plaintiff can plead delayed discovery or legally sufficient tolling.

The TAC does not allege any facts supporting the tolling of the statute of limitations as prescribed in Code of Civil Procedure section 364, subdivision (a), which states that: "No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action." (Code Civ. Proc., § 364, subd. (a).) However, "[i]f the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc., § 364, subd. (d); see also *Woods v. Young* (1991) 53 Cal.3d 315, 325 ["That

legislative purpose is best effectuated by construing section 364(d) as tolling the one-year statute of limitations when section 364(a)'s ninety-day notice of intent to sue is served during, but not before, the last ninety days of the one-year limitations period. Because the statute of limitations is tolled for 90 days and not merely extended by 90 days from the date of service of the notice, this construction results in a period of 1 year and 90 days in which to file the lawsuit."].) As such, Plaintiff must have served a pre-litigation notice to Defendants within ninety (90) days after the one-year limitations period expired. Thus, the latest date Plaintiff could have filed a lawsuit following pre-litigation notice was April 3, 2024.

Plaintiff alleges that on October 11, 2024, she issued a ninety-day notice of intent to commence legal action against the defendant, Western Dental. (TAC, ¶ 7.) Taking these allegations as true, pursuant to Code of Civil Procedure section 364, subdivision (a), Plaintiff served her pre-litigation notice six months after the tolling period.

To the extent that Plaintiff argues she properly alleged delayed discovery because her suspicion did not crystallize until October 2024, the Court disagrees. (Opp., p. 6:13-26.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' " (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808.) Also, "[u]nder the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her." (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110; Fox, supra, 35 Cal.4th at p. 807 ["[i]t follows that failure to discover, or have reason to discover, the identity of the defendant does not postpone the accrual of a cause of action, whereas a like failure concerning the cause of action itself does."].)

The TAC alleges that between December 29, 2022, and January 3, 2023, Decedent experienced a range of medical complications, including continuous bleeding from the site of the procedure, trismus (lockjaw), an inability to speak, altered consciousness, vomiting, acute encephalopathy, sepsis, a potential

urinary tract infection, and anemia, culminating in cardiac arrest that ultimately resulted in death. (TAC, ¶¶ 3, 32, 36-38, 73.) Given that the dental procedure was performed only five days prior to Decedent's passing, Plaintiff should have suspected wrongdoing following the dental procedure. (TAC, ¶ 39.)

Plaintiff contends that she was unaware of any potential wrongdoing until October 2024, citing her ignorance of the lockjaw until a later, unspecified time, the coroner's report indicating that the death was of a natural cause, the death certificate that noted "sequelae of sepsis of unknown etiology," and the absence of enforcement actions or formal disciplinary measures against Dr. Al-Hassan. (Opp., p. 7:7-16.) However, "[u]nder the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her." (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110.) Therefore, even though Plaintiff claims that reliance on this information obstructed her from recognizing any wrongdoing, she had already received indications that Decedent's death may have been attributable to Defendants' alleged wrongdoing. Moreover, Defendants highlight that Plaintiff informed Deputy Coroner Investigator Alondra Valentin of Decedent's visit to the dentist's office, which implies that Plaintiff possessed some level of suspicion regarding the connection between the dental procedures performed on December 29, 2022, and Decedent's subsequent death. (Reply, p. 3:7-10; TAC, ¶¶ 40-41.)

To the extent that Plaintiff argues that the claim should be tolled because she properly alleged intentional concealment under Code of Civil Procedure section 340.5, the Court disagrees.

"It has long been established that the defendant's fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it." (Sanchez v. South Hoover Hospital (1976) 18 Cal.3d 93, 99.)

As previously noted, Plaintiff should have been alerted to the possibility of wrongdoing following the dental procedure, given Decedent's multiple symptoms that arose thereafter. Consequently, the Court is unable to determine that the statute of limitations should be tolled or that the doctrine of

delayed discovery is applicable in this instance.

Accordingly, the Defendants' demurrer with respect to the first and second causes of action for wrongful death – professional negligence (Code Civ. Proc. § 377.60) and survival action – professional negligence (Code Civ. Proc. §§ 377.30, 377.34), respectively is SUSTAINED.

Third Cause of Action – Fraudulent Concealment

Defendants demur to Plaintiff's third cause of action for fraudulent concealment on the following grounds: (1) Plaintiff fails to meet the heightened specificity requirement; (2) the alleged concealment pertains to a later investigation rather than representing a separate instance of fraudulent injury; and (3) Plaintiff does not present an injury that resulted from the fraud. (Dem., pp. 9:7-10:20.) The Court agrees with the first argument and does not reach the merits of the remaining two.

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 (Lazar), quoting 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 676, p. 778.)

"To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts. [Citation.] There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.] [Citation.] Where ... there is no fiduciary relationship, the duty to disclose generally presupposes a relationship grounded in some sort of transaction between the parties. [Citations.] Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.

[Citation.] [Citation.] [Citation.]”

(Los Angeles Memorial Coliseum Com. v. Insomniac, Inc. (2015) 233 Cal.App.4th 803, 831, internal citations and quotations omitted.)

The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar, supra, 12 Cal.4th at p. 645.) In alleging a cause of action for fraud, “[t]he specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.” (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 793.)

Defendants specifically assert that Plaintiff fails to clearly articulate “which Defendant concealed which fact, when the concealment occurred, who acted on behalf of each Defendant, or how Plaintiff specifically relied on each alleged concealment.” (Dem., p. 9:23-24.) The Court partially agrees.

According to Plaintiff, in approximately February 2026, Defendants provided records related to Decedent; however, these records “affirmatively misrepresented the basis for the December 29, 2022 procedures by relying on stale July 2018 periodontal charting as if current” and “omit[ted] the chief complaint, the prior visit, the bacterial diagnosis, the topical treatment, the deferred cleaning, the patient signature on consent, and contain stale 2018 periodontal charting in lieu of current charting.” (TAC, ¶¶ 52, 82.) Furthermore, Plaintiff asserts that “Defendants did not, after being expressly advised of decedent’s death by plaintiff in February 2024, report decedent’s death to the Dental Board of California.” (TAC, ¶ 48.) Plaintiff contends that the lack of this information hindered her ability to promptly investigate the connection between Defendants’ treatment and Decedent’s death, which in turn delayed her in bringing this case, pursuing other regulatory remedies, and filing a complaint with the Dental Board of California at an earlier date. (TAC, ¶ 84.)

The Court finds that these

allegations do not identify which defendant, or individual working for the relevant defendant, concealed or omitted specific information from the records.

Accordingly, the Defendants' demurrer with respect to the third cause of action for fraudulent concealment is SUSTAINED.

Fourth Cause of Action – Battery – Lack of Consent

Defendants demur to Plaintiff's fourth cause of action for battery – lack of consent on the grounds that (1) Plaintiff's claim alleges a lack of informed consent and professional negligence, and (2) the claim is time-barred under Code of Civil Procedure section 340.5, as it pertains to the provision of professional dental services. (Dem., pp. 10:21-11:21.) The Court disagrees.

"A battery is a violation of an individual's interest in freedom from intentional unlawful, harmful or offensive unconsented contacts with his or her person. [Citation.]

The element of lack of consent to the particular contact is an essential element of battery. [Citation.]" (Rains v. Superior Court (1984) 150 Cal.App.3d 933, 938, internal citations omitted.)

"Where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery." (Cobbs v. Grant (1972) 8 Cal.3d 229, 239.) "The battery theory should be reserved for those circumstances when a doctor performs an operation to which the patient has not consented. When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence." (Id. at pp. 240-241.)

In the TAC, Plaintiff asserts that on December 29, 2023, Defendants performed two periodontal medicament carrier procedures with a peripheral seal and performed periodontal scaling and root planing on four or more teeth within each quadrant of Decedent's mouth. (TAC, ¶ 89.) Plaintiff alleges that no written or oral consent was obtained from Decedent for these procedures. (TAC, ¶ 90.) The consent form lacks Decedent's signature, and there is no documentation reflecting any oral consent. (TAC, ¶ 90.) Furthermore, Plaintiff alleges that the procedures were contraindicated due to Decedent's symptoms of mouth pain, jaw swelling, and an active bacterial infection, as these procedures carry the risk of bacteremia and systemic sepsis. (TAC, ¶ 92.)

The allegations presented indicate that Defendants performed procedures that Decedent did not consent to, thus constituting battery, rather than professional negligence, in accordance with *Cobbs v. Grant* (1972) 8 Cal.3d 229, 240-241. Consequently, this claim is not merely a recharacterization of Plaintiff's professional negligence claims or barred by Code of Civil Procedure section 340.5.

Additionally, regarding Defendants' argument that the cause of action is deficient because Plaintiff does not include details of discussions between Defendants and Decedent about what was agreed upon, the Court notes that there are no statutes or case law mandating that Plaintiff include such specific discussions. (Reply, p. 4:13-14.)

Accordingly, the Defendants' demurrer with respect to the fourth cause of action for battery – lack of consent is **OVERRULED**.

MOTION TO STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not

essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

Defendants seek to strike the following: (1) paragraphs 10, 86, and 97, as well as Prayer for Relief paragraphs 4 and 5, to the extent that they seek damages beyond what is permitted by Civil Code section 3333.2; (2) the phrase “the loss of the unlived years” contained in paragraph 70; (3) paragraph 95, which is regarded as an immaterial allegation; and (4) the allegations concerning restitution in paragraph 97 and Prayer for Relief paragraph 6. (MTS, pp. 4:25-7:21.) However, the Court notes that Defendants’ requests to strike portions of paragraphs 70 and 86 are rendered MOOT due to the sustainment of the demurrer pertaining to the first and third causes of action. Consequently, the Court will focus on the remaining requests.

Civil Code section 3333.2

Defendants request that the Court strike any allegations that claim, “the fraudulent-concealment and battery/lack-of-consent claims are not subject to Civil Code section 3333.2.” (MTS, p. 4L7-8.) They base this request on their assertion that these two causes of action constitute recharacterized professional negligence claims. (MTS, p. 5:9-15.) However, as articulated in the discussion regarding the battery – lack of consent cause of action, the Court finds this argument unpersuasive.

Accordingly, the request to STRIKE paragraphs 10 and 97, as well as Prayer for Relief paragraphs 4 and 5 is DENIED.

Immaterial Allegation

Defendants request that the Court strike paragraph 95 on the grounds that it consists of immaterial allegations for two primary reasons: (1) Plaintiff does not provide factual support for the broad institutional claims presented, and (2) the allegation is unnecessary to the claims articulated. (MTS, pp. 6:19-23.)

Plaintiff asserts, "Plaintiff is informed and believes, and on that basis alleges, that defendant Western Dental Services, Inc. and its corporate parent Premier Dental Holdings, Inc. dba Sonrava Health have an institutional pattern and practice of performing billable periodontal and other dental procedures on patients without obtaining proper signed informed consent and of substituting billable elective procedures for definitive treatment of patients' presenting conditions. Discovery will develop the specific instances and patterns of such institutional conduct." (TAC, ¶ 95.)

The Court observes that this conclusory allegation lacks sufficient factual allegations to substantiate the existence of the alleged institutional pattern and practice. Furthermore, the Court deems this allegation immaterial to any of Plaintiff's causes of action. Although Plaintiff contends that it is relevant to the fraudulent concealment claim on the basis that it relates to intent, the Court has already sustained Defendants' demurrer concerning this cause of action. (Opp., p. 4:26.)

Accordingly, the request to STRIKE the allegations in paragraph 95 on the grounds of irrelevance is GRANTED.

Restitution

Defendants request that the Court strike paragraph 97 and Prayer for Relief paragraph 6 on the grounds that (1) "the restitution request is tied to the same defective battery/lack-of-consent theory" and (2) "Plaintiff's allegations otherwise arise from alleged professional dental services[.]" (MTS, p. 7:17-19.) However, as articulated in the discussion regarding

the battery and lack-of-consent cause of action, the Court finds these arguments unpersuasive.

Accordingly, the request to STRIKE paragraph 97 and Prayer for Relief paragraph 6 is DENIED.

ORDERS

1) Defendants

Western Dental Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava Health, and Melath Khalid Al-Hassan, D.D.S.' Demurrer to Plaintiff Shelia Jones' Third Amended Complaint is SUSTAINED with respect to the first, second, and third causes of action and OVERRULED with respect to the fourth cause of action.

2) Defendants

Western Dental Services, Inc., Premier Dental Holdings, Inc. d/b/a Sonrava Health, and Melath Khalid Al-Hassan, D.D.S.' Motion to Strike Portions of Plaintiff Shelia Jones' Third Amended Complaint is GRANTED IN PART as to paragraph 95.

3) Plaintiff

Shelia Jones' is GRANTED twenty (20) days Leave to Amend.

4) Plaintiff

is ordered to provide notice of this ruling.

IT IS SO ORDERED.

DATED: July 30, 2026

Tamara
Hall

Judge
of the Superior Court